

Amendment No. 1 to SB1981

Bailey
Signature of Sponsor

AMEND Senate Bill No. 1981*

House Bill No. 2179

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 50-6-226(d), is amended by deleting the subsection and substituting:

(d)

(1) In addition to attorneys' fees provided for in this section, the court of workers' compensation claims may award reasonable attorneys' fees and reasonable costs, including, but not limited to, reasonable and necessary court reporter expenses and expert witness fees for depositions and trials, incurred when the employer fails to furnish appropriate medical, surgical, and dental treatment or care, medicine, medical and surgical supplies, crutches, artificial members, and other apparatus to an employee provided for in a settlement, expedited hearing order, compensation hearing order, or judgment under this chapter.

(2) In addition to attorneys' fees provided for in this section, the court of workers' compensation claims may award reasonable attorneys' fees and reasonable costs, including, but not limited to, reasonable and necessary court reporter expenses and expert witness fees for depositions and trials, incurred when the employer unreasonably denies a claim or unreasonably fails to timely initiate any of the benefits to which the employee or dependent is entitled under this chapter, including medical benefits under § 50-6-204, temporary or permanent disability benefits under § 50-6-207, or death benefits under § 50-6-

210, if the workers' compensation judge concludes, at either an expedited hearing or a compensation hearing, that the employer's denial or failure to timely initiate benefits was unreasonable.

(3) When, at an expedited hearing, the workers' compensation judge concludes under subdivision (d)(2) that the employer unreasonably denied the claim or unreasonably failed to timely initiate benefits, the court may award attorneys' fees and costs at that time. If, in addition, the workers' compensation judge finds that the evidence of such unreasonableness is clear and convincing, then any award of attorneys' fees and costs under subdivision (d)(2) must not be deferred to a compensation hearing. The interlocutory nature of an expedited hearing order does not, standing alone, serve as a basis to deny or defer an award of attorneys' fees and costs under this subdivision (d)(3).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.